

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[850 NE2d 1157, 818 NYS2d 182]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MEDNAN
REDZEPOSKI, Respondent.

Argued May 2, 2006; decided June 6, 2006

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 15, 2005. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Caesar Cirigliano, J.), which had convicted defendant, upon a jury verdict, of grand larceny in the fourth degree and criminal possession of stolen property in the fifth degree, and (2) remanded for a new trial.

People v Redzeposki, 21 AD3d 781, reversed.

HEADNOTE

Crimes — Right to be Present at Trial

In a criminal prosecution, before proceeding in a defendant's absence, a court should make inquiry and recite on the record the facts and reasons it relied upon in determining that defendant's absence was deliberate. Since the trial court in this case properly inquired into defendant's absence and reasonably determined, based on the court's own observation as well as defense counsel's explanation, that defendant had deliberately left the courthouse shortly before announcement of the jury verdict, the Appellate Division improperly reversed defendant's conviction, and the case must be remitted to that Court for consideration of the facts (CPL 470.25 [2] [d]; 470.40 [2] [b]).

APPEARANCES OF COUNSEL

Robert T. Johnson, District Attorney, Bronx (*Jillian E. Wieder*, *Joseph N. Ferdenzi* and *Allen H. Saperstein* of counsel), for appellant.

Legal Aid Society, New York City (*Ellen Dille*, *Steven Banks* and *Laura R. Johnson* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court for consideration of the facts (see CPL 470.25 [2] [d]; 470.40 [2] [b]).

“Before proceeding in defendant’s absence, the court should . . . ma[ke] inquiry and recite[] on the record the facts and reasons it relied upon in determining that defendant’s absence was deliberate” (*People v Brooks*, 75 NY2d 898, 899 [1990]). Here, the trial court properly inquired into defendant’s absence and reasonably determined—based on the court’s own observation as well as defense counsel’s explanation—that defendant had deliberately left the courthouse shortly before announcement of the jury verdict.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

Order reversed, etc.

[850 NE2d 1157, 818 NYS2d 182]

HARRY KUSHNER et al., Appellants, v CITY OF ALBANY, Respondent.

Decided June 6, 2006

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 9, 2006. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Albany County (Louis C. Benza, J.), which had granted defendant’s motion for a directed verdict dismissing plaintiffs’ complaint.

Plaintiff sustained injuries when he struck a pothole in the street while riding his bicycle. Supreme Court dismissed the complaint based on plaintiff’s failure to comply with defendant City’s prior written notice requirement.

The Appellate Division concluded that defendant’s ineffectual pothole repair job, which did not make the condition any worse, did not constitute an affirmative act of negligence precluding defendant from relying on its prior notice law.

Kushner v City of Albany, 27 AD3d 851, affirmed.

HEADNOTE

Municipal Corporations — Notice of Street Defect

In a personal injury action seeking recovery for injuries plaintiff bicyclist sustained when he struck a pothole in the street, which defendant City allegedly had ineffectively repaired, plaintiffs failed to raise a triable issue of fact sufficient to withstand a motion for a directed verdict on the question of whether the injuries resulted from an affirmative act of negligence that would preclude defendant from relying on its prior written notice law.

APPEARANCES OF COUNSEL

Rothschild Law Firm, P.C., Syracuse (*Martin J. Rothschild* of counsel), for appellants.

Napierski, Vandeburgh & Napierski, L.L.P., Albany (*Eugene Daniel Napierski* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The Appellate Division properly determined that plaintiffs failed to raise a triable issue of fact sufficient to withstand a motion for a directed verdict on the question of whether plaintiff's alleged injuries resulted from an affirmative act of negligence that would preclude defendant City of Albany from relying on its prior written notice law (*see Amabile v City of Buffalo*, 93 NY2d 471, 473-474 [1999]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

In the Matter of JOHN L. EADIE et al., Appellants, v TOWN BOARD OF THE TOWN OF NORTH GREENBUSH et al., Respondents.

Submitted May 15, 2006; decided June 6, 2006

Reported below, 22 AD3d 1025.

Motion by Young, Sommer, Ward, Ritzenberg, Baker & Moore, LLC to withdraw as counsel for the Town respondents granted. Motion by the Gallogly respondents, treated as a motion to limit briefing and argument on the appeal, denied.

Judge READ taking no part.

DANIEL HERNANDEZ et al., Appellants, v VICTOR L. ROBLES, Respondent.

In the Matter of ELISSA KANE et al., Appellants, v JOHN MARSO LAIS, as Albany City Clerk, et al., Respondents.

SYLVIA SAMUELS et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

JASON SEYMOUR et al., Appellants, v JULIE HOLCOMB, as City Clerk of the City of Ithaca, et al., Respondents.

Submitted May 8, 2006; decided June 6, 2006

Reported below, 26 AD3d 98.

Reported below, 26 AD3d 661.

Reported below, 29 AD3d 9.

Reported below, 26 AD3d 661.

Motion by Pastor Gregory A. Wilk et al. for leave to file a brief amici curiae on the appeals herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

Judge ROSENBLATT taking no part.

DANIEL HERNANDEZ et al., Appellants, v VICTOR L. ROBLES, Respondent.

In the Matter of ELISSA KANE et al., Appellants, v JOHN MARSO LAIS, as Albany City Clerk, et al., Respondents.

SYLVIA SAMUELS et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

JASON SEYMOUR et al., Appellants, v JULIE HOLCOMB, as City Clerk of the City of Ithaca, et al., Respondents.

Submitted May 22, 2006; decided June 6, 2006

Reported below, 26 AD3d 98.

Reported below, 26 AD3d 661.

Reported below, 29 AD3d 9.

Reported below, 26 AD3d 661.

Motion by Paul McHugh, M.D. et al. for leave to file a brief amici curiae on the appeals herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

Judge ROSENBLATT taking no part.

ANNETTE MEISELMAN, Appellant, v DANIEL KAPLAN et al.,
Defendants, and MEYERS MOVING & STORAGE CO., Respon-
dent.

Submitted April 10, 2006; decided June 6, 2006

Reported below, 24 AD3d 192.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

RAVEENDRAN NARAYANAN, Appellant, v CITY OF NEW YORK, De-
fendant, and FJC SECURITY SERVICES, INC., Respondent.

Submitted March 27, 2006; decided June 6, 2006

Reported below, 21 AD3d 533.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RONALD
ACKRIDGE, Appellant.

Submitted May 8, 2006; decided June 6, 2006

Reported below, 26 AD3d 390.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 denied as unnecessary and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALAN
BROWN, Appellant.

Submitted May 22, 2006; decided June 6, 2006

Reported below, 24 AD3d 188.

Motion for assignment of counsel granted and Laura R. Johnson, Esq., Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STERLING A. CAGLE, Appellant.

Submitted May 30, 2006; decided June 6, 2006

Reported below, 26 AD3d 735.

Motion for assignment of counsel granted and Frank J. Nebush, Jr., Esq., Oneida County Public Defender, Union Station, 321 Main Street, Utica, New York 13501, assigned as counsel to the appellant on the appeal herein.

In the Matter of SHONDEL J., Respondent, v MARK D., Appellant.

Submitted May 8, 2006; decided June 6, 2006

Reported below, 6 AD3d 437.

Motion by US Citizens against Paternity Fraud et al. for leave to file a brief amici curiae on the appeal herein denied as untimely (*see* Rules of Practice of Court of Appeals [22 NYCRR] § 500.23).

[850 NE2d 1151, 818 NYS2d 175]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN SERRANO, Appellant.

Argued May 11, 2006; decided June 8, 2006

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 28, 2005. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Carol Berkman, J., at hearing; Leslie Crocker Snyder, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree.

People v Serrano, 19 AD3d 303, affirmed.

HEADNOTE

Crimes — Jurors — Selection of Jury

In a criminal prosecution, the trial court did not abuse its discretion in applying CPL 270.15 (1) (a) by calling 44 people for simultaneous voir dire questioning and placing 12 in the jury box and the others in four front rows of the courtroom. The statute provides that the names of “not less than twelve” members of a panel be drawn and called but sets no upper limit for the number of prospective jurors, thus allowing judges discretion to make their courtrooms, and voir dire, more efficient. Here, defendant did not demonstrate that he could not conduct a voir dire by the trial court’s decision to expand the jury box. During voir dire, counsel expressed no inability to observe, hear or assess the demeanor and qualifications of, or exercise challenges against, any prospective jurors. There was also no evidence of prejudice.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Carol A. Zeldin* and *Robert S. Dean* of counsel), for appellant.

Robert M. Morgenthau, *District Attorney*, New York City (*Grace Vee* and *David M. Cohn* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The trial court did not abuse its discretion by calling 44 people for simultaneous voir dire questioning.

Defendant was arrested during a buy-and-bust operation in June 2001 for selling heroin. He was convicted of criminal sale of a controlled substance in the third degree (Penal Law § 220.39 [1]). At the start of jury selection, the trial court called 44 individuals for simultaneous questioning, placing 12 in the jury box and the others in four front rows of the courtroom. The defense attorney objected to the number of prospective jurors, stating that he would have difficulty conducting an effective voir dire since many prospective jurors sat behind him.

The trial court overruled the objection, noting that this procedure was approved in *People v Camacho* (230 AD2d 604 [1st Dept 1996], *affd on other grounds* 90 NY2d 558 [1997]), that counsel could turn his chair around at any point to observe any prospective juror, and that although the follow-up questioning might take longer than usual, the 44-juror voir dire would continue in the interests of efficiency. The Appellate Division affirmed defendant’s conviction and the trial court’s procedure (19 AD3d 303 [1st Dept 2005]), citing its approval of this method

in *People v Association of Trade Waste Removers of Greater N.Y.* (267 AD2d 137 [1st Dept 1999]), *People v Campbell* (259 AD2d 447 [1st Dept 1999]), and *People v Camacho* (*supra*).

The relevant statute, CPL 270.15 (1) (a), states in part:

“If no challenge to the panel is made as prescribed by section 270.10, or if such challenge is made and disallowed, *the court shall direct that the names of not less than twelve members of the panel be drawn and called as prescribed by the judiciary law.* Such persons shall take their places in the jury box and shall be immediately sworn to answer truthfully questions asked them relative to their qualifications to serve as jurors in the action” (emphasis added).

In 1981, this statute was amended to allow “not less than twelve” prospective jurors to be called in order to “permit the simultaneous examination of as many jurors as possible, and thus reduce the number of ‘rounds’ required to complete the selection” (Preiser, Practice Commentaries [McKinney’s Cons Laws of NY, Book 11A, CPL 270.15, at 275]). The prior version mandated that 12 persons be seated for questioning. Tellingly, the Legislature set no upper limit for the number of prospective jurors, thus allowing judges discretion to make their courtrooms, and voir dire, more efficient.

Defendant has not demonstrated that he could not conduct a voir dire by the trial court’s decision to expand the jury box. During voir dire, counsel expressed no inability to observe, hear or assess the demeanor and qualifications of, or exercise challenges against, any prospective jurors. There was also no evidence of prejudice on the record at the end of voir dire. We therefore conclude that there was no abuse of discretion in applying CPL 270.15 (1) (a).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed in a memorandum.

[850 NE2d 1161, 818 NYS2d 186]

WILLIAM BRYANT, Respondent, v STATE OF NEW YORK, Appellant.

Decided June 8, 2006

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an or-

der of that Court, entered November 28, 2005. The Appellate Division (1) reversed, on the law, a judgment of the Court of Claims (Richard E. Sise, J.), which, after a nonjury trial on the issue of liability, had dismissed the claim, (2) reinstated the claim, and (3) remitted to the Court of Claims for a trial on the issue of whether to apportion any fault to the plaintiff and, if so, the percentage of fault attributable to the plaintiff, and on the issue of damages. The following question was certified by the Appellate Division: “Was the decision and order of this court, dated November 28, 2005, properly made?”

Bryant v State of New York, 23 AD3d 592, appeal dismissed.

HEADNOTE

Appeal — Court of Appeals — Matters Appealable — Certified Question

The Appellate Division did not have the power to grant leave to appeal to the Court of Appeals on a certified question where the Appellate Division reversed a Court of Claims judgment dismissing the claim after a nonjury trial on the issue of liability, reinstated the claim, and remitted for a trial on the issue of whether to apportion any fault to the plaintiff and, if so, the percentage of fault attributable to the plaintiff (NY Const, art VI, § 3 [b] [3], [4]; CPLR 5601 [c]; 5602 [b] [1]). The apportionment of fault is a component of the liability determination, which was the subject of the initial trial. Accordingly, defendant’s appeal was dismissed.

APPEARANCES OF COUNSEL

Eliot Spitzer, Attorney General, Albany (Michael S. Buskus, Caitlin J. Halligan, Daniel Smirlock and Peter H. Schiff of counsel), for appellant.

Bergstein & Ullrich, LLP, Chester (Christopher D. Watkins and Stephen Bergstein of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

Defendant’s appeal should be dismissed, without costs, upon the ground that the Appellate Division did not have the power to grant leave to appeal to the Court of Appeals on a certified question in these circumstances (*see* NY Const, art VI, § 3 [b] [3], [4]; CPLR 5601 [c]; 5602 [b] [1]; *Maynard v Greenberg*, 82 NY2d 913, 914 [1994]). The apportionment of fault is a component of the liability determination, which was the subject of the initial trial.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed, without costs, in a memorandum.

APPALACHIAN INSURANCE COMPANY, Respondent, v GENERAL ELECTRIC COMPANY, Appellant, and RIUNIONE ADRIATICA DISICURTA, Also Known as ADRIATIC INSURANCE COMPANY, et al., Respondents, et al., Defendants. (And a Third-Party Action.)

Submitted June 5, 2006; decided June 8, 2006

Reported below, 19 AD3d 198.

Motion by Certain Underwriters at Lloyd's, London for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

Judge READ taking no part.

VICTOR BATSCHEVER, Appellant, v MICHAEL ASEN et al., Respondents.

Submitted April 17, 2006; decided June 8, 2006

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

CITIBANK, N.A., Respondent, v PETER CLAVAN, Appellant.

Submitted April 10, 2006; decided June 8, 2006

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for a stay etc. dismissed as academic.

BELLA DAVIS, Respondent, v MICHAEL MELNICKE, Appellant.

Submitted May 15, 2006; decided June 8, 2006

Reported below, 25 AD3d 503.

Appeal, insofar as taken from that portion of the Appellate Division order that affirmed the appointment of an arbitrator, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not directly involve a substantial constitutional question; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the remaining portion of the Appellate Division order does not finally determine an action or proceeding within the meaning of the Constitution.

In the Matter of FREDERICK FRANKLIN, Respondent, v TARA CHRISTIE MINER, as Records Access Officer, New York County District Attorney's Office, Appellant. ASSOCIATION OF SURROGATE'S AND SUPREME COURT REPORTERS WITHIN THE CITY OF NEW YORK, Intervenor-Respondent.

Submitted January 30, 2006; decided June 8, 2006

Reported below, 21 AD3d 276.

Motion for leave to appeal denied. The Court of Appeals restates the rule that denial of a motion for leave to appeal is not equivalent to an affirmance and has no precedential value (see *Matter of Marchant v Mead-Morrison Mfg. Co.*, 252 NY 284, 297-298 [1929, Cardozo, Ch.J.]).

In the Matter of FREDERICK FRANKLIN, Respondent, v TARA CHRISTIE MINER, as Records Access Officer, New York County District Attorney's Office, Respondent. ASSOCIATION OF SURROGATE'S AND SUPREME COURT REPORTERS WITHIN THE CITY OF NEW YORK, Intervenor-Appellant.

Submitted March 6, 2006; decided June 8, 2006

Reported below, 21 AD3d 276.

Motion for leave to appeal denied. The Court of Appeals restates the rule that denial of a motion for leave to appeal is not equivalent to an affirmance and has no precedential value (see *Matter of Marchant v Mead-Morrison Mfg. Co.*, 252 NY 284, 297-298 [1929, Cardozo, Ch.J.]).

In the Matter of PETER GRAZIANO, Appellant, v ROBERT DENNISON, Respondent.

Submitted April 17, 2006; decided June 8, 2006

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ERROL IRVING, Appellant, v NEW YORK STATE DIVISION OF PAROLE, Respondent.

Submitted May 22, 2006; decided June 8, 2006

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

In the Matter of LEROY C., JR. and Others, Children Alleged to be Permanently Neglected. HANNA N., Appellant; ST. CHRISTOPHER'S, INC., et al., Respondents, et al., Respondent.

Submitted May 1, 2006; decided June 8, 2006

Reported below, 24 AD3d 143.

Motion for reargument of motion for leave to appeal denied [see 6 NY3d 708]. Cross motion for imposition of sanctions denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BOBBY LANE, Appellant.

Submitted June 5, 2006; decided June 8, 2006

Reported below, 25 AD3d 517.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* RONALD M. ACK-
RIDGE, Appellant, v WARREN D. BARKLEY, Respondent.

Submitted April 10, 2006; decided June 8, 2006

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of the individual Justice of the Appellate Division (*see* NY Const, art VI, § 3; CPLR 5602).

In the Matter of THOMAS RILEY, Appellant, v GLENN S. GOORD,
as Commissioner of Correctional Services, Respondent.

Submitted May 1, 2006; decided June 8, 2006

Reported below, 22 AD3d 925.

Motion for reargument denied [*see* 6 NY3d 823]. Motion for poor person relief dismissed as academic.

RIVERVIEW DEVELOPMENT HOLDING CORP., Respondent, v MARIA
DOE, Also Known as MARIA CALDERON, Appellant.

Submitted April 10, 2006; decided June 8, 2006

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

XAND CORPORATION, Appellant, v RELIABLE SYSTEMS ALTERNATIVES CORPORATION, Respondent.

Submitted May 1, 2006; decided June 8, 2006

Reported below, 25 AD3d 795.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]).

[853 NE2d 222, 819 NYS2d 853]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS
RAMOS, Appellant.

Decided June 13, 2006

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 26, 2005. The Appellate Division affirmed a sentence of the Supreme Court, Kings County (Gustin L. Reichbach, J.), imposed following defendant's conviction, upon his plea of guilty, of rape in the first degree (two counts), attempted rape in the first degree (two counts), robbery in the first degree and attempted assault in the first degree.

People v Ramos, 21 AD3d 1125, affirmed.

HEADNOTE**Crimes — Plea of Guilty — Withdrawal of Plea**

In a criminal prosecution, defendant's waiver of his right to appeal was effective where the record established that he knowingly, intelligently and voluntarily waived his right to appeal. Even if there were any ambiguity in the sentencing court's colloquy, defendant executed a detailed written waiver which stated that he had the right to appeal, explained the appellate process and confirmed that defense counsel fully advised him of the right to take an appeal under the laws of the State of New York.

APPEARANCES OF COUNSEL

Appellate Advocates, New York City (*Lynn W.L. Fahey* of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Joyce Slevin* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Defendant's waiver of his right to appeal was effective. Even if there were any ambiguity in the sentencing court's colloquy, defendant executed a detailed written waiver, distinguishing this case from *People v Billingslea* (6 NY3d 248, 257 [2006]), in which the sentencing court's colloquy was "accompanied by nothing other than defendant's one-word response to the question whether she understood the conditions of her plea." In this case, defendant's written waiver stated that defendant had the right to appeal, explained the appellate process and confirmed that defense counsel fully advised him of the right to take an appeal under the laws of the State of New York. The record therefore establishes that defendant knowingly, intelligently and voluntarily waived his right to appeal.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

AKBER AZIZ, Appellant, v GULZAR AZIZ, Respondent.

Submitted April 24, 2006; decided June 13, 2006

Motion, insofar as it seeks leave to appeal as against respondent Aziz, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal as against the law guardian, denied.

STEPHEN BABCOCK, Appellant, v STATE UNIVERSITY AGRICULTURAL & TECHNICAL COLLEGE AT ALFRED, Respondent.

Submitted May 1, 2006; decided June 13, 2006

Reported below, 27 AD3d 1176.

Motion for leave to appeal dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511).

RAYON BAKER, Appellant, v TRINITY-PAWLING SCHOOL, Respondent, et al., Defendant. TRINITY-PAWLING SCHOOL, Third-Party Plaintiff, v HOTCHKISS SCHOOL, Third-Party Defendant-Respondent.

Submitted May 3, 2005; decided June 13, 2006

Reported below, 21 AD3d 272.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that denied appellant's motion for leave to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that dismissed the third-party complaint, dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied.

In the Matter of IRVING BARTHOLOMAY, Respondent, v MARY BARTHOLOMAY, Appellant.

Submitted May 8, 2006; decided June 13, 2006

Reported below, 26 AD3d 794.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

PATRICIA J. CURTO, Appellant, v NEW YORK STATE COLLEGE OF VETERINARY MEDICINE AT CORNELL et al., Respondents. (And Another Similarly Captioned Action.)

Submitted May 10, 2006; decided June 13, 2006

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the actions within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

COLLEEN RICH, Respondent, v NORTH AMERICAN SPECIALTY INSURANCE COMPANY, Appellant.

Submitted May 10, 2006; decided June 13, 2006

Reported below, 26 AD3d 237.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

APPEALS DISMISSED ON CONSTITUTIONAL GROUNDS

Decided June 8, 2006

Decker, Matter of (Commissioner of Labor)
St. Thomas Malankara Orthodox Church, Inc., Long
Is., Matter of, v Board of Appeals, Town of
Hempstead

3d Dept: 27 AD3d 821

2d Dept: 23 AD3d 666